45-000.A CalWORKs Non-Minor Dependents (NMDs) Q&A

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45-000.A.1 Eligibility to Extended Benefits

Top

QUESTION 1

Do the CalWORKs school rules of graduating by the age of 19 continue to remain in effect or is a foster youth turning 18 mandated to enter the Extended Foster Care (EFC) program under Assembly Bill (AB) 12? Can the Non-Minor Dependent (NMD) opt out of extended CalWORKs benefits and continue to be aided through CalWORKs until he/she graduates?

An 18-year old foster youth has the option to receive an extended CalWORKs payment, if eligible as a NMD, **or** to remain in the "regular" CalWORKs program under his/her caretaker relative's AU if he/she is expected to graduate before the age of 19.

A youth who is eligible as a NMD is **not** required to enter the EFC program. If the youth in this situation chooses to receive "regular" CalWORKs, upon graduating high school or reaching age 19, the youth may then transition over to the extended benefits, if he/she meets the AB 12 requirements.

The Child Welfare Services (CWS) Social Worker must ensure that the foster youth receives information about the AB 12 requirements and has all the documentation completed prior to his/her high school graduation or 19th birthday, whichever is earlier.

See CPG 40-100.T.4 for Eligibility Criteria for NMDs.

ACL 12-27

QUESTION 2

Does participation in the EFC Program require a NMD to be enrolled in post-secondary or vocational school at least half-time?

Yes, the NMD must be enrolled in post-secondary school or vocational school at least half-time, unless another participation activity is met. See CPG 40-100.T.5.

ACL 12-27

QUESTION 3

Can a youth over 18 enter into the CalWORKs NMD program?

It depends. A youth over 18 cannot be entering Foster Care or CalWORKs for the first time. Foster youth age 18 and older must continue to be a dependent of the court, have been a CalWORKs recipient as a child, agree to participate in one of the five participation criteria and sign a mutual agreement to be eligible for the CalWORKs NMD program, per CPG 40-100.T.4.

ACL 12-27

QUESTION 4

If a NMD leaves and re-enters foster care, is he/she still eligible for extended CalWORKs?

Yes, the NMD may still be eligible for extended CalWORKs if the CWS Social Worker determines that the youth:

- Has met the re-entry requirements for the EFC Program (AB 12);
- Is placed with a caretaker relative; and
- Is **not** eligible for federal foster care benefits.

The EFC Program re-entry requirements for the youth include:

1. Being at least 18 but under age 21;
2. Being under a foster care placement order on their 18th birthday;
3. Agreeing to meet **one** or more of the five AB 12 eligibility conditions (CPG 40-100.T.5);
4. Having authority for placement (by completing the Voluntary

Re-Entry Agreement for Extended Foster Care (SOC 163) followed by resumption of juvenile court jurisdiction); and
5. Being placed with an approved relative.

A new eligibility determination for federal foster care funding is required if the foster care dependency was terminated. Youth who re-enter foster care may be federally eligible for EFC benefits under a child-only eligibility determination. The federal Title IV-E eligibility is based **solely** on the youth's income and assets at the time of re-entry.

A NMD who previously received extended CalWORKs benefits will be eligible for state foster care benefits **if** found eligible for Title IV-E benefits upon re-entry.

See CPG 40-100.T.4 for Eligibility Criteria and CPG 40-100.T.5 for Requirements for NMDs and CWS responsibilities.

ACL 13-82

QUESTION 5

Are NMDs eligible for extended CalWORKs during the time frame the caretaker relative is taking steps to become approved for foster care placement? For example, a youth turns age 18 and can no longer live with the caretaker relative. The youth then moves in with another relative.

No, the NMD is **not** eligible for extended CalWORKs while waiting for the caretaker relative to be approved for foster care placement. As a condition of eligibility, the NMD must be placed with an approved relative.

However, the NMD may be eligible for regular CalWORKs or EFC benefits in a Supervised Independent Living Placement (SILP) while living in the relative's home and awaiting approval for placement. Relative approval by CWS is not required in the regular CalWORKs program, and the youth may be eligible for CalWORKs if he/she is expected to graduate before his/her 19th birthday.

See CPG 40-100.T.4 for CalWORKs eligibility criteria for NMDs.

ACL 13-82

QUESTION 6

What happens if the NMD fails to comply with EFC Program (AB 12) requirements, the NMD's dependency case is subsequently terminated, and the NMD re-enters foster care a few months later with verification that he/she is back in school/work? Are Good Cause situations recognized in these instances?

If the NMD fails to comply with program requirements, and aid is subsequently terminated by the court, the NMD has the option to re-enter foster care at a later date, if he/she is eligible.

Good Cause would not be a consideration because CalWORKs

program rules do not apply to NMDs.

Note: This is anticipated to be a rare situation, as the CWS Social Worker or probation officer is required to work closely with the NMD to maintain eligibility.

ACL 13-82

QUESTION 7

If the NMD who is receiving extended CalWORKs leaves the home of the approved caretaker relative, could he/she qualify for a foster care payment by going into a different foster care placement setting, such as a SILP, etc.?

Yes, non-federal foster youth who are placed with an approved relative and are receiving extended CalWORKs benefits are dependents and are considered in foster care, provided that court dependency was not terminated. Therefore, they are eligible for **all** placement options. However, the NMD should be placed in the least restrictive environment and provided with a continuum of care.

If the NMD moves to a SILP, he/she can receive the basic Foster Care rate. The NMD may be able to receive this payment directly. This decision will need to be documented in the Transitional Independent Living Case Plan (TILCP). The BDA for Foster Care would be the first of the month following the month the SILP is approved, provided a 10-day Notice of Action (NOA) has been sent to discontinue the NMD from CalWORKs.

ACL 13-82

45-000.A.2 Other Household Members

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QUESTION 1

In what situation would an approved caretaker relative with a NMD be eligible for CalWORKs?

A caretaker relative may receive CalWORKs if there is another eligible child living in the home or if the caretaker is a qualifying pregnant woman. If the NMD is the only eligible child the caretaker relative will **not** be eligible for CalWORKs.

See CPG 40-100.T.14 for information regarding Other Household Members.

ACL 12-27

QUESTION 2

Is the child of a NMD eligible for extended benefits?

No, the NMD's grant amount will not increase for other household members as the NMD is only eligible to receive a payment amount that

is equal to a non-exempt AU of one, per CPG 40-100.T.11.

The NMD has the option to establish a "regular" CalWORKs AU to receive benefits for him/herself and his/her child(ren) if eligible.

ACL 12-27

QUESTION 3

If the NMD is pregnant and then gives birth, would that baby be considered Maximum Family Grant (MFG) if it meets the MFG rules? Is this special extended benefits program an MFG exclusion reason?

No, NMDs are not subject to regular CalWORKs program rules, so the MFG rule does not apply to NMD parents, per CPG 40-100.T.7. The NMD does not complete a CalWORKs application or interview process and would not have received the MFG informing notice.

The NMD has the option to establish "regular" CalWORKs to receive benefits for both him/herself and his/her child if eligible. In this scenario, MFG rules would not apply as the NMD did not receive any informing notices.

For example, a NMD has a child but is not receiving aid for that child. The NMD decides to establish “regular” CalWORKs. MFG does not apply to the child the NMD already has. However, the MFG rule will apply to any subsequent children.

ACL 12-27

QUESTION 4

If a NMD is living in a SILP and renting a room from a caretaker relative, how is the income that the NMD pays to the caretaker relative treated for the purposes of determining the relative’s eligibility to CalWORKs (assuming that the relative is needy and has other dependent children in the home that make the relative eligible to receive CalWORKs)?

If the NMD lives in the home and pays his/her portion of the rent, it is considered a partial item of need and is **not** counted as income against the caretaker relative’s CalWORKs grant.

If the NMD pays the entire rent amount for the home, the value of the rent would be considered **income in-kind** and deducted from the caretaker relative’s CalWORKs grant based on the Income In-Kind chart.

ACL 13-82

QUESTION 5

SCENARIO: A father who meets the requirements for EFC lives in an approved SILP with his girlfriend, their common child, and the

girlfriend's parents. The girlfriend applies for CalWORKs. The father receives EFC benefits and also has earnings.

Is the father mandatorily included in the CalWORKs AU? If so, does this mean he is not eligible for EFC? If not, is the EFC payment counted in the CalWORKs budget? How are his earnings treated?

Per state law, the child of the NMD father is **not** an eligible child for CalWORKs; therefore, the child cannot receive CalWORKs. The NMD father would continue to be eligible for EFC and the infant supplement. The girlfriend may be considered a caretaker relative and receive CalWORKs for herself in her own AU (AU = 1), if otherwise eligible.

The father may choose to receive "regular" CalWORKs as a non-NMD, instead of EFC, and may request to receive CalWORKs for himself and his child with his girlfriend, if eligible. However, if he chooses to continue to be an NMD and remain in EFC, his EFC payment will **not** be counted in the CalWORKs budget of his girlfriend's AU.

The NMD's earnings would also **not** be counted when determining CalWORKs eligibility and grant amount for the girlfriend. The NMD's income is **not** counted towards the CalWORKs budget because he is the recipient of another aid program.

ACL 13-82; ACL 13-82E

QUESTION 6

SCENARIO: **A NMD in a SILP is pregnant and lives with the father of her unborn baby. The couple is not married. The NMD receives a Foster Care payment. The father has two children from a previous relationship and receives CalWORKs, CalFresh, and Medi-Cal for himself and the two children.**

When the child is born, will the child be required to be aided in the father's CalWORKs AU? If the NMD receives an infant supplement when the child is born, will the infant supplement count as income in the father's CalWORKs budget?

Per state law, the NMD's child will be **excluded** from the father's AU. The NMD mother may receive an infant supplement for her child, and the father's CalWORKs AU will remain an AU of three. The infant supplement will not count as income in the father's CalWORKs budget, as the newborn is not in the CalWORKs AU.

Because the foster care payment is intended for the needs of the person receiving it, and that person is excluded from the father's CalWORKs AU, it is not considered available to meet the needs of the AU. Therefore, the foster care payment is not counted as income when determining eligibility and grant amount for the father and his two children.

ACL 13-82; ACL 13-82E

45-000.A.3 Treatment of Income and Property

Top

QUESTION 1

How is Transitional Housing Placement-Plus-Foster Care (THP+FC) treated in the CalWORKs program? Is the THP+FC payment treated as unearned income? Also, would just a portion of it be used against the budget or would all of the THP+FC monies be counted? Would the monies in the Emancipation Fund by countable as an asset?

The THP+FC payment is a **Foster Care** payment. The NMD may not receive a Foster Care payment and a CalWORKs payment at the same time.

ACL 13-82

QUESTION 2

If the NMD qualifies for Supplemental Security Income (SSI) or other Social Security Administration (SSA) benefits (i.e., survivor's benefits, or benefits based on his/her parent's disability), how is the SSI or SSA income used?

Under Section 202(d) of the Social Security Act, all SSA benefits received by a child are supposed to end at age 18 unless the youth is a full-time high school student or disabled. SSA benefits continue until the youth graduates or until two months after he/she reaches age 19, whichever comes first. SSA benefits may continue after he/she reaches age 18 if the youth is considered disabled as an adult.

SSA benefits continuing beyond age 18 **will** be counted as income against the NMD's extended CalWORKs grant.

NMDs can receive both SSI and the extended CalWORKs benefit. The SSI payment will be reduced by the amount of the CalWORKs benefit. However, as the NMD remains in extended foster care, the NMD receives all the services, including case management, Independent Living Program (ILP), and court supervision, which all youth in extended care receive.

ACL 13-82

45-000.A.4 Out-of-County

Top

QUESTION 1

If the NMD moves to another county, does the issuance of the extended CalWORKs benefits shift to the new county and become the responsibility of the new county?

No, the new county will not issue extended CalWORKs benefits to an NMD without a court-ordered transfer of jurisdiction.

For payment responsibility of extended CalWORKs (and Medi-Cal) benefits, the **county of jurisdiction** retains payment responsibility for NMDs regardless of what county the youth lives in. The NMD must

continue to live with the caretaker relative to maintain eligibility for extended CalWORKs benefits.

If the caretaker relative is also receiving CalWORKs for other eligible children, an Inter-County transfer (ICT) will be initiated to transfer his/her CalWORKs case to the new county under regular program rules.

See CPG 40-100.T.13 for Changes in Jurisdiction.

ACL 12-27

QUESTION 2

What are the requirements for extended CalWORKs benefits when the NMD moves to another county? Will the case be transferred to the new county and will the sending county follow the same protocol and timelines used for transferring cases electronically? What case documents need to be included in the transfer?

The NMD must continue to live with the caretaker relative to be eligible for extended CalWORKs benefits. Since the county with payment responsibility for the NMD is the county of jurisdiction, an ICT for the NMD will **not** be necessary unless the NMD has already been receiving aid from another county.

EXAMPLE:
A foster youth (under age 18) moves from County A to County B with his caretaker relative and an ICT is sent to County B. County A retains jurisdiction for child welfare services case management, while County B now has payment responsibility for CalWORKs.

When the youth becomes eligible as a NMD he/she is moved into his/her own AU. Since the county of jurisdiction retains payment responsibility for CalWORKs and Medi-Cal benefits for NMDs, the NMD's case must be transferred to County A. The children's services case manager contacts the CalWORKs eligibility worker in County B and requests an ICT. County B then initiates the case transfer to the CalWORKs eligibility worker in County A via electronic ICT (e-ICT) and sends the SOC 162, the most recent SOC 161, and ID for the NMD.

If the youth was transitioning to be a NMD in the same month as the move, the youth's case would not transfer but would be set up as a separate AU in County A. If there are other eligible children receiving CalWORKs, the remainder of the CalWORKs AU would transfer to County B. Existing ICT procedures apply to the caretaker relative at the time of the move. An ICT is needed only when the caretaker relative is aided with other children.

ACL 12-27

45-000.A.5 Reporting

QUESTION 1

Responsibilities

How will the CalWORKs HSS know where to send payments, NOAs, etc. if the NMD is not required to report address changes to CalWORKs?

Top

The CWS Social Worker will inform the HSS of any address changes for the NMD. The address will also be on file if the caretaker relative has other children on aid.

See CPG 40-100.T.5 for Requirements and Responsibilities for Non-Minor Dependents.

ACL 12-27

QUESTION 2

Is the NMD's approved caretaker relative subject to reporting requirements for CalWORKs? Since conditions of EFC require the NMD to live in an approved and supervised placement, what action would be required by the caretaker relative if the NMD moves out of the caretaker relative's home (approved placement)?

The caretaker relative is **not** subject to CalWORKs reporting requirements. The CWS Social Worker or probation officer will report changes in address or EFC eligibility to the CalWORKs HSS.

As the CWS Social Worker or probation officer participates in monthly meetings with the NMD, the CWS Social Worker or probation officer should always be aware of the NMD's location/address.

See CPG 40-100.T.5 for Requirements and Responsibilities for Non-Minor Dependents.

ACL 13-82

45-000.A.6 Beginning Date of Aid (BDA)

Top

QUESTION 1

SCENARIO: A dependent of the court, not eligible for federal Foster Care, lives with his aunt, who receives CalWORKs. The dependent is 18, but because he will graduate prior to his 19th birthday, he remains aided on his aunt's CalWORKs AU. The CWS Social Worker informs the dependent about AB 12 and he wants to participate, but the aunt does not want the CalWORKs payment to stop.

When would the dependent be discontinued from the aunt's CalWORKs AU? The CalWORKs program cannot reduce a grant mid-period except under certain circumstances. Would the child be discontinued mid-period from the aunt's CalWORKs AU with a 10-day Notice of Action (NOA)?

The NMD will be discontinued from the aunt's CalWORKs AU with a

10-day NOA on the first of the month following the youth's request for extended benefits once the signed SOC 161 (Six-Month Certification) has been received from CWS.

A NMD transferring into his/her own Assistance Unit (AU) is a mid-period County-initiated action, per CPG 40-100.T.10.

ACL 12-27

QUESTION 2

What will be the BDA for NMDs eligible for extended CalWORKs? The day the intra-program transfer (IPT) is submitted and/or received to CalWORKs? The first of the month?

For youth currently receiving CalWORKs aid who are determined eligible for extended CalWORKs benefits, the BDA for the NMD is the first of the following month in which the SOC 161 is signed, and timely and adequate notice can be provided to the caretaker relative to lower or discontinue their CalWORKs grant.

The SOC 161 must be signed by the CWS Social Worker and the HSS and serves as certification for the initial and continuing CalWORKs payment. The SOC 162 (Mutual Agreement) is also required to be provided to the HSS by the CWS Social Worker as a condition for participation in the EFC Program. Both the SOC 161 and SOC 162 are required documentation for the CalWORKs case. See CPG 40-100.T.10.

ACL 12-27

QUESTION 3

When a NMD re-enters EFC what will be the BDA?

The BDA for extended CalWORKs is the day the NMD is placed with an approved caretaker relative, provided the youth and CWS have signed a SOC 163 and all other eligibility criteria are met. The first month's benefits will be **prorated** as of the BDA.

See CPG 40-100.T.10 for establishing the BDA.

ACL 13-82

45-000.A.7 Benefit Issuance and Recovery

Top

QUESTION 1

If the approved caretaker relative has other eligible children in the home that are applying for CalWORKs, how are CalWORKs benefits issued? Separately under two different case numbers, one for the NMD and the other for the additional eligible CalWORKs children?

CalWORKs benefits for the NMD are issued separately. The NMD will be assigned a new case number and aid code and will be placed in

his/her own AU. Identification will be needed **prior** to issuing benefits to the NMD. The caretaker relative and other eligible child(ren) will remain in a separate AU. See CPG 40-100.T.11.

ACL 12-27

QUESTION 2

Do NMDs qualify for retroactive extended CalWORKs benefits? Counties are still trying to decide how to implement and understand EFC, so if counties implement effective February 1, 2012, for example, would NMDs be eligible to receive retroactive EFC benefits?

Yes. NMDs may receive retroactive extended CalWORKs benefits. Since AB 12 benefits commenced on January 1, 2012, benefits will be retroactive to the date the SOC 161 form is signed. The SOC 161 must be signed by the CWS Social Worker and by the HSS.

See CPG 40-100.T.6 for EFC Program Forms and CPG 40-100.T.10 for Establishing the Beginning Date of Aid (BDA).

ACL 12-27

QUESTION 3

Can the HSS issue the CalWORKs payment in a warrant or is the HSS required to use Electronic Benefit Transfer (EBT)?

If a NMD is unable to successfully use the EBT system, the HSS has the option of providing benefits through an alternative delivery method. This may include the use of direct deposit or warrants. Examples of barriers to successful use of EBT may include remoteness or language barriers.

ACL 13-82

QUESTION 4

Can a NMD receive a CalWORKs payment and reside in a SILP at the same time?

No, a NMD may **not** receive a CalWORKs payment and a foster care payment for a SILP at the same time. A payment received for a SILP is a **foster care** payment, and the NMD cannot receive a foster care payment and a CalWORKs payment at the same time, as this is considered duplicate aid.

ACL 13-82

QUESTION 5

Can a NMD who is receiving state foster care funding move in with a relative and get an extended CalWORKs payment as well as the foster care payment?

No, a NMD may receive **either** the EFC payment or the extended CalWORKs payment, but not both.

ACL 13-82

QUESTION 6

Will an overpayment (OP) be assessed for NMDs who receive extended CalWORKs benefits that exceed the amount to which they are entitled?

Although an OP could occur due to court delays or late filing of paperwork, HSSs are encouraged to review the circumstances to determine whether the OP claim is valid.

As a reminder, the SOC 161 (Six-Month Certification) must be provided by the CWS Social Worker (or probation officer) to the CalWORKs HSS by the end of the first month of the next six-month certification period to avoid a disruption of benefits.

Note: This is anticipated to be a rare situation, as the CWS Social Worker or probation officer is required to work closely with the NMD to ensure that he/she remains eligible for extended CalWORKs benefits. OPs are also unlikely to occur as work requirements and CalWORKs program rules do **not** apply to NMDs, as outlined in CPG 40-100.T.7.

ACL 13-82

45-000.A.8 CalWORKs Program Rules

Top

QUESTION 1

Aside from the SOC 161 and SOC 162, what documents are required for the CalWORKs case? Examples: Birth certificate, ID, EFC participation verification, Transitional Independent Living Plan (TILP), verification that the caretaker relative is approved, verification of relatedness between the NMD and the caretaker relative, verification regarding the approved caretaker relative.

Identification for the NMD is required for his/her CalWORKs case. The birth certificate is **not** required as it is already included in the caretaker relative's CalWORKs case. The other verifications listed above will be retained in the CWS file for the NMD and are not needed for CalWORKs eligibility.

See CPG 40-100.T.8 for CalWORKs Case Documents and Forms.

ACL 12-27

QUESTION 2

Are NMDs required to fill out the SAWS 1 and SAWS 2 PLUS?

No, the NMD is **not** required to fill out the SAWS 1 and SAWS 2 PLUS. Eligibility to extended CalWORKs is established initially via the

SOC 161 and SOC 162, and subsequently via the SOC 161 updated at each six-month certification. NMDs do not have regular CalWORKs annual redeterminations and are **not** governed by CalWORKs program rules.

See CPG 40-100.T.7 for Exemptions from CalWORKs Program Requirements and CPG 40-100.T.8 for CalWORKs Case Documents and Forms.

ACL 12-27

QUESTION 3

Will (a) question(s) be added to the SAWS 2 PLUS for an applicant to provide information if a NMD is in the home?

No, the SAWS 2 PLUS requires applicants to list every adult living in the household and specify the type of aid requested. The NMD would therefore be listed as a household member, but would not be listed as seeking aid, since he/she is already aided in his/her own AU. See CPG 40-100.T.14.

ACL 12-27

QUESTION 4

Are NMDs required to be fingerprinted?

Statewide Fingerprint Imaging System (SFIS) requirements apply to all individuals who reach age 18 or older.

From **January 1, 2012 - December 31, 2012**, NMDs were required to comply with the SFIS requirement for CalWORKs.

Effective **January 1, 2013**, NMDs are **no longer** required to be fingerprinted or photo imaged as a condition of eligibility due to the passage of AB 1712.

See CPG 40-100.T.7 and 40-100.V.

ACL 12-27

QUESTION 5

Are NMDs required to have a face-to-face interview for CalWORKs?

No, a CalWORKs face-to-face interview with the NMD is not required **at any time** for CalWORKs, per CPG 40-100.T.7. However, the CWS Social Worker or probation caseworker is required to visit the NMD monthly.

ACL 12-27

QUESTION 6

Are NMDs subject to CalWORKs income and property limits?

No, NMDs are not subject to CalWORKs property and income rules. However, they are subject to the Foster Care income and property limits. See CPG 40-100.T.7.

ACL 12-27

QUESTION 7

Since NMDs are treated as adults in their own CalWORKs AU but are not referred to Welfare-to-Work (WTW), would their CalWORKs time clock start at the time that CalWORKs is first issued to them on their own case?

No. CalWORKs program rules do not apply to NMDs. Therefore, NMDs are not subject to CalWORKs time limits, per CPG 40-100.T.7.

ACL 12-27

QUESTION 8

Since extended CalWORKs benefits are 100% state-funded, does the citizenship status of the NMD make any difference for the purposes of AB 12? (Federal eligibility vs. State eligibility)

Since NMDs are already receiving CalWORKs, citizenship status should have been established previously. Citizenship requirements continue to apply for NMDs.

ACL 12-27

QUESTION 9

Is a NMD considered a child for child support purposes?

It depends. Per AB 212 (Chapter 459, Statutes of 2011), a NMD over the age of 19 is not considered a child for child support purposes. A child support referral is required if the youth is 18 and still in high school unless the county determines that good cause exists.

A NMD is not considered a “parent” for the purposes of child support referral if the NMD resides with his/her child in foster care, per AB 1712. Effective January 1, 2013, a NMD will **not** be subject to collection or enforcement of child support. See CPG 40-100.T.7.

ACLs 12-27; 13-10

QUESTION 10

Do NMDs receiving extended CalWORKs qualify for special needs, such as Homeless Assistance, therapeutic diet, and Pregnancy Special Need (PSN)?

With appropriate verification, NMDs who are receiving extended CalWORKs may receive special needs payments for pregnancy and recurring special needs.

The PSN will begin the month of request and will continue through the end of the month of the child's birth. Additional verification is required only if a pregnancy goes beyond the original expected due date.

Recurring special needs must be verified at least annually and may be required more often depending on the type of need and potential for change.

NMDs receiving extended CalWORKs are in foster care and must be placed with an approved relative; therefore, NMDs would **not** meet the definition of being homeless and would **not** be eligible for Homeless Assistance payments. NMDs facing homelessness must contact their CWS Social Worker or probation officer for available housing options.

ACL 13-82

45-000.A.9 Welfare-to-Work (WTW)

Top

QUESTION 1

The NMD is not required to participate in WTW activities, but can the NMD volunteer to participate in for WTW activities?

No, the NMD may **not** volunteer for WTW activities per CPG 40-100.T.7.

ACL 12-27

QUESTION 2

Will CalWORKs cases for NMDs be part of the Work Participation Rate (WPR) sample?

No, NMDs are not included in the WPR sample. See CPG 40-100.T.7 for Exemptions for CalWORKs Program Requirements.

ACL 12-27

45-000.A.10 Other Programs

Top

QUESTION 1

SCENARIO: A NMD is eligible for CalFresh benefits as a boarder because the caretaker relative has opted to include the NMD in the CalFresh household.

In this situation, the NMD's needs are included in the CalFresh eligibility determination, but do other CalFresh regulations apply for the NMD and the household to be eligible (i.e., income requirements, county residency, etc.?

All standard CalFresh eligibility rules would apply to the household if the NMD is included as part of the eligible CalFresh household.